

Dharmendra Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 May 2022 · WRIT - C No. 33874 of 2021 · **Writ disposed; 6.8 objection directed; recovery stayed eight weeks**

HEADNOTE

In a writ seeking quashing of a demand notice issued under the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958, the Allahabad High Court, without entering the merits, disposed of the petition by permitting the consumer to file an objection under clause 6.8 of the U.P. Electricity Supply Code, 2005, directing time-bound disposal after hearing, and staying coercive recovery for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

Dharmendra Yadav filed a writ petition in the Allahabad High Court seeking certiorari to quash a demand notice dated 12 October 2021 issued by the power distribution corporation under sections 3 and 5 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958. The matter was first listed on 21 December 2021, when none appeared for the petitioner and it was adjourned. On 20 May 2022 the corporation's counsel stated that the petitioner could file an objection to the demand, which would be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery demand

HOLDING

Without expressing any opinion on merits, the writ challenging a dues-recovery demand was disposed of with liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks. If so filed, the distribution licensee must decide it in accordance with law, preferably within the next four weeks, after a reasonable opportunity of hearing. Coercive action on the impugned demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Court relegated the consumer to a clause 6.8 objection, directed time-bound disposal after hearing, and stayed coercive recovery pending that objection. ¶ 1

assessment-6.8-alternate-remedy The writ was disposed without a merits decision because the licensee accepted that an objection to the demand could be filed and decided under para 6.8. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 12.10.2021 AND THE MERITS OF THE CLAIMED DUES

The Court expressly declined to express any opinion on the merits. ¶ 1